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How High Is Too High? Disposing of Dung in Seventeenth-Century Prescott*

Walter King

The inhabitants of the relatively small, compact town of Prescott in seventeenth-century England were creative and utilitarian when disposing of human and animal waste products. For a fee, residents could pile their dung against the front of their houses and shops for up to a month or place it on the waste or commons. Dunghills against houses were not supposed to be “disordered” or allowed to “lie down” and “spread” themselves in the street. Public health considerations were not the only, and possibly not even the principal, reason for regulating disposal. The effect of population pressure and the development of local government on public health bylaws is discussed. The trend during the seventeenth century was toward stricter enforcement of public health regulations.

DEFEATING THE MICROBE (had it been known) and preventing disease in seventeenth-century Prescott were difficult tasks given the realities of daily existence. Two very important realities were the absence of flush toilets and the near absence of zoning ordinances regulating, especially, swine and cattle in urban areas. Rural inhabitants could dispose of human and animal waste as fertilizer in gardens and fields. Urban residents, however, had a disposal problem. Some did “their business on the pavement,” in the churchyard, or against alehouse walls; others emptied chamber pots onto the king’s highway, out their back windows, into streams, ditches, or cesspits in cellars, or piled waste on their property.

Approximately six hundred persons resided in Stuart Prescott, an important marketing center for the surrounding agricultural area east of Liverpool and the site of the parish church that served seven other townships. The inhabitants of Prescott did not get into trouble with their annual court leet for depositing human and animal waste products in streets, but for placing so much that the movement of travelers was obstructed, leaving the waste material in streets longer than allowed, or piling waste against the street side of their houses or shops without paying a fee. Prescott’s court leet was a royal court in private hands that exercised limited civil and non-felonious criminal jurisdiction. A leet order of 1580 allowed Prescott’s

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inhabitants to pile solid waste products in the street near their doors for up to a week.¹ A century later in 1678 leet jurors gave John Lyon, tanner, ten days to remove his cattle dung from Snig Lane and ordered that in the future he not leave his cattle dung there above a month.² After securing permission from at least two of the officers called the "four men," residents who placed their dunghills, also called middens, on the street side of their house were charged a fee, sometimes called a "tax," that went for street repairs.³ Elizabeth Houghton, widow, was presented at the leet in 1669 for an illegal midden, that is, one for which no fee had been paid. But, according to a marginal note, the presentment was "respite[d] because [she] paid [the fee to the] supervisors of highways."⁴ The four men also collected a fee from both owners selling and individuals purchasing dung piled against house walls.⁵ Removing dung from Mill Lane and converting it to his use, although he had "noe right or property thereto," because he had paid no fee, incurred for William Glover in 1671 a fine of 6s. 8d., mitigated to 3s. 4d.⁶ When residents did not pay the fee for depositing dung or did not claim ownership of dunghills for which no fee had been paid, the town could seize and sell the dung, with the money, again, going for street repairs.

Of course, inhabitants could avoid the fee by piling dung on the back side of their residence. And between 1600 and 1660 three renters did secure from owners "full and free liberty" to lay dung on the backside of their rented property.⁷ But in relatively urban and compact Prescott (about 120 acres⁸) many individuals, especially shop owners, piled their unneeded dung on the street side of their residence to facilitate removal.

Rarely does a leet entry explicitly state that residents could pile dung against the front of their residence for a week or month. Most entries merely mention the obvious: that "by allowance of this court" dung could be piled next to the street side of a residence or shop and that sometimes it had been left there "longer than by order is allowed." For example, leet jurors at Tudor Prescott permitted William Caryson and William Ratchdale

¹F. A. Bailey, ed., *A Selection from the Prescott Court Leet and Other Records, 1447-1600*, Record Society for Lancashire and Cheshire 89 (London, 1937), 212.

²Lancashire Record Office (Preston) [cited hereafter as L.R.O.], DDCs for 1678.

³L.R.O., DDCs for 1622, DDKc/PC 4/112 for 1659, and DDKc/PC 4/11 for 1660 and 1669. "Middens or Middings. The North of England name for dunghills." John Harland, ed., *The House and Farm Accounts of the Shuttleworths of Gawthorpe Hall, in the County of Lancaster, at Smithills and Gawthorpe, from September 1582 to October 1621*, pt. 4, Chetham Society 46 (Manchester, 1858), 802.

⁴L.R.O., DDKc/PC 4/11 for 1669.

⁵L.R.O., DDCs for 1619.

⁶L.R.O., DDKc/PC 4/154 for 1671.

⁷L.R.O., DDKc/PC 4/41 and DDKc/PC 4/139 bis. for 1649; DDKc/PC 4/107 for 1656; and DDKc/PC 4/112 for 1658.

⁸The town and Prescott Hall comprised about 270 acres, but the effective jurisdiction of Prescott's leet was about 120 acres, the town proper. William Farrer and J. Brownbill, eds., *The Victoria History of the County of Lancaster*, 8 vols. 3 (London, 1907): 353; and Bailey, *Prescott Court Leet*, 2, 314.

to lay their dung "joyntely together in place most convenient nere thayr howses" and for each to use the dung in alternate years or to sell it and "parte the money . . . indifferently."⁹

Apparently the privilege to deposit dung against a house wall could be rescinded. In 1686 the court fined William Houghton 3s. 4d. for laying against the front of his house dung which was "a common nuisance" and for "emptieinge his house of office [privy] there." Although William had exercised his paid privilege during the previous two years, leet jurors ordered him never again to lay dung against his house.¹⁰

For a fee inhabitants of Prescot could also dispose of their dung on the "common ground" or waste. The town then either sold that dung, with the money going for street repairs, or scattered the dung over the waste. It was expected that those laying dung on the waste would not deposit "sundrie loads" or "a great quantity . . . to the great hindrance of the common pasture," as Thomas Walls did in 1659 and Margery Walls and Thomas Rainford did in 1661 and 1662. The court fined them 6s. 8d. and ordered them to remove their dung.¹¹ In 1659 fifteen individuals paid an annual fee, called "rates" in 1671, for their middens on the waste; later in the century the annual number varied between seven and nineteen.¹² Both original owners and individuals to whom the dung had been sold were fined 1 1/2d. to 6d. for removing dung from the waste without paying another fee, designated "tax" in 1632 and 1642.¹³ The court leet considered William Blundell, gentleman, an unusually serious offender. Because he had removed dung from the waste for three years "without giving any satisfaction," that is, without paying a fee, he was fined 7s. 6d. in 1675, increased to 10s. in 1676 when he continued his behavior.¹⁴ Sixty years earlier the court fined John Ditchfield 12d. for each of four loads of dung removed from the waste without paying the customary fee.¹⁵

As the terms "tax" and "rates" suggest, rather than being a penalty for wrongdoing, often the "fine" was a licensing fee for a privilege. At Prescot between 1678 and 1700, at least 293 annual fees disguised as fines were collected.¹⁶ For 206 the amount is known: 1/2d. (4), 1d. (16), 2d. (77), 3d. (99), 4d. (5), 6d. (4), and 12d. (1). Sixty percent of the ninety-one individuals allowed by the court to place dung in the street or on the waste paid fees two or more years. Cornelius Fells paid a fee of 2d. or 3d. every year between

⁹Bailey, *Prescot Court Leet*, 124.

¹⁰L.R.O., DDKc/PC 4/126 for 1686.

¹¹L.R.O., DDKc/PC 4/112 for 1659 and DDX 480/20/3 for 1661 and 1662.

¹²L.R.O., DDKc/PC 4/154 for 1671. Also see DDKc/PC 4/161 for 1633.

¹³L.R.O., DDKc/PC 4/161 for 1632 and DDCs for 1642. Other records mention "the sums imposed."

¹⁴L.R.O., DDKc/PC 4/154 for 1675 and 1676.

¹⁵L.R.O., DDCs for 1616. Also see DDCs for 1621.

¹⁶Leet officers submitted the first "list" in 1678, none in 1679 and 1680, and no paperbook survives for 1682.

1678 and 1699 when he died. To judge by the leet paperbook of 1681, the amount of the fee was based upon more than the number of middens or dunghills placed on the waste. Twelve individuals with one midden paid 1*d.* (4), 2*d.* (7), or 4*d.* (1); one person with two middens paid 2*d.*; seven with four paid 2*d.* (2), 3*d.* (4), or 4*d.* (1); and one inhabitant with fourteen paid 12*d.*¹⁷

A similar situation prevailed to the east at Salford near Manchester where in 1621 thirty-one residents were "fined" for dunghills in streets. The same persons were "fined," usually 6*d.*, year after year.¹⁸

For Prescot it is possible to distinguish a fee for a privilege from a fine for wrongdoing. Fines usually were higher for owners of dunghills and privies that annoyed streets or the waste. In 1689 William Crouchley paid a fee of 3*d.* for laying dung on the waste but a fine of 3*s.* 4*d.* for a privy that annoyed the street. To encourage payment of the low fee of 2*d.* or 3*d.*, the fine for laying dung in the street or on the waste without paying the fee commonly was 6*d.* or 12*d.*

Dunghills were perceived less as a health hazard and more as an eyesore or hindrance to travelers. In 1619 John Worsley was accused of laying dung in Hall Lane in Prescot "by meanes wherof the passinge with cariages and on horse back is much annoyed." The court did not order John to remove the dung but only to "contain" it within the "limits" to be established by the four men.¹⁹ The authorities in Prescot did expect that dunghills would be removed from the streets at least four days before an annual fair and that middens would be "cleansed" annually before Corpus Christi.²⁰ Nearby Liverpooldians could skirt the order to remove dunghills just before fair time by erecting a wall to hide the dunghills from passersby. The wall was to be seven feet high in 1576 but only four feet in 1655.²¹ To encourage James Sorocold to wall up "a common midding" on the waste adjoining his house that "much annoyed" Hall Lane, Prescot's leet authorities in 1620 offered not to collect from him for seven years the customary fee paid for the privilege of placing his dung in that midden.²²

Dunghills against residents' houses were supposed to be neat, not "disordered" or "inconvenient" and not allowed to "lie down" and "spread" themselves into the street. Every Saturday each householder of Stuart Prescot was required to clean the street between his or her residence

¹⁷L.R.O., DDKc/PC 4/120-136 for 1681.

¹⁸J. G. de T. Mandley, ed., *The Portmote or Court Leet Records of the Borough or Town and Royal Manor of Salford From the Year 1597 to the Year 1669 Inclusive*, 2 vols., Chetham Society 46, n.s. (Manchester, 1902), 1: passim.

¹⁹L.R.O., DDCs for 1619.

²⁰Bailey, *Prescot Court Leet*, 86, 77.

²¹J. A. Twemlow, ed., *Liverpool Town Books, Proceedings of Assemblies, Common Councils, Portmoot Courts, etc., 1550-1862*, vol. 1, 1550-1571 (London: Constable & Co., 1918), 271 n. 9. For Prescot see L.R.O., DDCs for 1620.

²²L.R.O., DDCs for 1620.

or shop and the public ditch running down the middle of the street and to remove within three hours, increased to five hours in 1692, the muck that had been raked up.²³ The two streetlookers walked through the town every Saturday evening to check on compliance. We know that it was in 1692 that the time limit was altered, for in the leet paperbook for that year “three” had been struck through and “five” interlined in the same ink and hand as the rest of the order. The law may have been liberalized because of the significant number of residents not meeting the three-hour limit and not cleaning their street. Even after the liberalization, in 1693 thirty households, about twenty-five percent of the whole, were fined for not cleaning the street in front of their house or shop. Salford had a similar bylaw requiring inhabitants to sweep their streets each Saturday and remove the dung “that night.”²⁴

A few individuals, however, did not look upon the court’s allowance to store dung temporarily against their house walls as a privilege and instead illegally added their dung to their neighbors’ piles or “cast” it into the street. Presumably most residents were careful most of the time not to annoy streets with “disordered” dung, since dung was a valuable commodity in pre-industrial society for improving soil fertility. Thomas Parr, innkeeper, had £3 13s. 4d. worth of dung when he died in 1680, or four percent of his total worth. Another eleven inventories of inhabitants of Stuart Prescott mentioned between 6d. and 20s. in dung and muck.²⁵

About a dozen miles north of Prescott at Ormskirk a “carter” was paid 5s. annually to carry away for his own use each Monday whatever “small heaps and Cobbs of Dung” he found in the streets, that is, dung that was not orderly piled against house walls.²⁶ The authorities expected that the collector would be abused by residents who preferred to collect the loose dung in front of their house and add it to their pile and ordered that those giving abuse be presented at the court leet. To prevent dung from falling into their streets, Liverpooldians ordered those transporting dung out of town to use a cart with a back board.²⁷ Individuals carrying dung out of town also had to pay an annual fee of 12d. for street repair. In some Lancashire towns, officers called scavengers weekly collected human waste and rubbish from homes and shops into muck carts and dumped the material either within the town at the “stoops” or posts or in the countryside.

Ecclesiastical authorities were less tolerant than secular officials of the

²³L.R.O., DDKc/PC 4/53 for 1692 and 1693. Also see DDKc/PC 4/66 for 1639, DDKc/PC 4/41 for 1643, and DDKc/PC 4/154 for 1672.

²⁴Mandley, *Salford*, 32.

²⁵All inventories are at the L.R.O.

²⁶R. Sharpe France, ed., “The Order Book of Ormskirk, 1613–1721,” *A Lancashire Miscellany, Record Society of Lancashire and Cheshire* 109 (London, 1965): 46.

²⁷Twemlow, *Liverpool Town Books . . .*, vol. 2, 1571–1603 (1935), 7.

disposing of dung in any amount at any time in Prescott's churchyard, near the church wall, or on the way to the vicarage west of the church.²⁸ In 1673 the diocesan court at Chester assessed Mary Kenrick of Prescott 5s. for dumping dung and rubbish in the churchyard. While the behavior is not identical to Mary's, still, it is interesting to contrast Mary's fine of 5s. with the fine of 3*d.* assessed at Prescott's leet during the late seventeenth century against individuals who laid dung against the church wall.

Besides creating problems for travelers, "disordered" dung also got into ditches and blocked them. Seventeenth-century towns were a maze of private ditches running from houses, shops, barns, and other buildings to the common ditches in the streets. All ditches functioned as open sewers. Prescott's "channels" ran down the middle of streets. Mischievous individuals threw dung into ditches, while a few others illegally erected a house of office or privy over them and hoped that the flow of rainwater would carry everything anywhere else.²⁹ The authorities usually became concerned only when ditches, "wrecked up with dung and filth," became blocked and overflowed into streets, wells, or onto the land of complaining neighbors. Overflowing often occurred, as one would expect, when the weather was "unseasonable" and rain plentiful. Ditches were supposed to be sufficiently wide and deep to accommodate a considerable quantity of rainwater and filth that would either "naturally" or illegally end up in them. Prescott employed "a certain measure" to make all ditches the same width.³⁰ To the north at Westby in the Fylde, where the weather was damp and the elevation low, ditches were supposed to be eight feet wide and two to three feet deep.³¹ At Walton-le-Dale near Preston, Edmund Shaw was ordered in 1637 to make his ditch one and one-half yards wide and a yard deep.³²

Not surprisingly, a frequent accusation before courts leet was not "guttering and scouring" private ditches; a few inhabitants were also charged with refusing to help clean the "common watercourses;" still others were charged with diverting ditches away from their houses, no doubt to avoid overflowing water mixed with human and animal waste and rubbish. To prevent the ditches that conveyed water across the king's highways from continuing to serve as open sewers, in 1688 Lancashire's justices of the peace ordered that they "bee soughed with wall stone and well covered throughout from one side of the lane to the other. . . ."³³ Ditches on private property, however, remained uncovered.

²⁸Cheshire Record Office (Chester), EDV 1/42; L.R.O., DDCs for 1648 and DDKc/PC 4/112 for 1654 and 1659.

²⁹The ditch in Knightsbridge, co. Middlesex, was called "the common sewer." William Le Hardy, ed., *County of Middlesex, Calendar to the Sessions Records*, n. s., vol. 3, 1615–1616 (London, 1937), 70.

³⁰Bailey, *Prescot Court Leet*, 174–75.

³¹L.R.O., DDCl/1141 for 1611 and 1615.

³²L.R.O., DDHo for 1637.

³³L.R.O., QSR/82, Wigan, Michaelmas 1688.

In short, residents neatly piled dung outside their houses and shops expecting to scatter it over their fields later or otherwise to dispose of it, possibly by selling it to individuals more fully engaged in agriculture. In the meantime, some dung got into houses, streets, ditches, and water supplies, was dispersed by animals, became “noisome” to noses, and in general became unhealthy. John Rosbothom of Walton-le-Dale, his wife, children, and servants were ordered in 1637 to pay a fine of 3s. 4d. if they did not stop relieving themselves against the back wall of John’s house. It seems that they were contaminating a nearby well.³⁴ John Bold of Wigan, gentleman, was more direct: according to four witnesses, he abused a well in 1671 “by pisseing” in it “to the great Loss & detriment of the Neiyaborhood.”³⁵ These two anecdotes should not obscure a primary reason for regulating privies: the runoff offended noses. Avis Warner’s privy in Prescott may have been “very troublesome” to passersby in 1683, but it was bothersome “especially in hot weather.”³⁶

The approximately six hundred residents of Prescott had three public and a number of private wells. The public wells were Lady and Sletherforth wells and a well sunk by Lawrence Webster in 1606 and surrendered to the town in 1629 by his grandchild, John Webster. These three community water supplies were walled with stones and railed to keep them “well clean[ed] from geese, swine, and cattell.”³⁷ To protect the three wells further, inhabitants were required to place dunghills and to fetch water in clean vessels and wash food, clothes, dishes, fish, butchered meat, animal skins, “puddings” (pig intestines used for sausage skins), and other items at least twenty feet below the wells in 1552, reduced to fifteen feet “att the lest” in 1609.³⁸ At nearby Ormskirk the minimum distance was twelve feet.³⁹ Prescott’s leet held masters responsible for servants who defiled wells. Numerous orders issued and charges of wrongdoing adjudicated at Prescott and at other leets demonstrate that people regularly polluted wells by leaving or throwing in foreign matter, including carrion and sheep horns, and by washing “filthy things” in them and by allowing runoff from swine houses and privies to enter them. Of course, unfenced animals also polluted wells, and, until the Parliamentary enclosure movement of the late eighteenth century, many accepted roaming animals as natural, especially after harvest. Of the forty-four annual courts leet held between 1615 and 1660 for which records survive, at twenty-three the authorities at Prescott decreed orders or issued punishments relating to the quality of the water in the town’s wells.

³⁴L.R.O., DDHo for 1637.

³⁵Wigan Record Office (Leigh), CL/Wi.-34.

³⁶L.R.O., DDKc/PC 4/126 for 1683.

³⁷L.R.O., DDCs for 1624.

³⁸Bailey, *Prescot Court Leet*, 119; L.R.O., DDCs for 1609.

³⁹France, “Order Book of Ormskirk,” 39.

Local authorities sometimes encountered difficulty compelling compliance to bylaws regulating public health. In 1651 Prescott's leet jurors threatened John Poughtin, variously described as a cooper and innkeeper, with a fine of 13s. 4d. if he did not remove or alter his swine house that opened upon and annoyed the street. Alteration would have involved directing the runoff onto his property or into his ditch which connected with the public ditch in the street. Because in 1652 the "water" from the swine house continued to enter the street, jurors doubled the threatened fine to 26s. 8d. But John still did not obey and in 1654 was warned that the fine now was 40s. The jurors added that the inhabitants of Prescott were troubled not only by the runoff but also by "the stink or smell." The fine was again increased in 1655 to 60s. and in 1659 to 80s. The jurors may have acquiesced to the situation because in 1660 they merely mentioned John's failure to amend his swine house and no longer threatened him with a fine.⁴⁰

The problem, of course, was the near absence of modern zoning regulations separating houses and mercantile shops from agricultural outbuildings. Even "unto the court house," which was the meeting place for leet jurors and under which were shops, inhabitants laid dung. The reason for prohibiting the laying of dung against Prescott's court house is interesting: "the water cannot pass its usual way."⁴¹ In other words, as long as the customary fee was paid and no obstruction was created, dung could be piled most any place.

The Gerrards similarly encountered leet enforcement of public health regulations that, while not lax, were definitely not strict. In 1609 Thomas Gerrard and his wife Joan were warned by Prescott's two streetlookers to remove their dung from and clean the street. Because the streetlookers did not declare in their note to the leet jurors that the dung annoyed the street and because they employed warnings rather than presentment in an attempt to alter behavior, it can be assumed that the Gerrards had the allowance of the court to pile dung in front of their residence but had left it there too long. When the Gerrards failed to comply with the warning, they were given one more day under threat of a fine of 12d. When the order was still not carried out, the streetlookers allowed them two more days. The street was not cleaned, another day was given and the threatened fine was increased to 3s. 4d.⁴² The Gerrards did not clean the street, but the leet records do not inform us whether they ever paid a fine. The court leet was clearly unable to encourage Thomas to abide by its bylaws, for at the next annual court the jurors ordered other leet officers to investigate the accusation that Thomas' privy was annoying the private wells of his neighbors.⁴³

⁴⁰L.R.O., DDKc/PC 4/11 for 1660; DDKc/PC 4/112 for 1651, 1652, 1654, 1655, and 1659.

⁴¹L.R.O., DDKc/PC 4/112 for 1655.

⁴²L.R.O., DDCs for 1609.

⁴³L.R.O., DDCs for 1610.

The anecdotal history so far discussed is interesting but unsatisfying. We also want to know whether concerns about the public health of the residents of Prescott changed during the seventeenth century and if so how and for what reasons. Two obvious factors which could have influenced public health concerns are population pressure and the development of local government.

The well documented expansion of Elizabethan England's population continued into the early Stuart period. By about 1640 population had leveled off and even declined slightly in some years until approximately 1690 when births again regularly exceeded deaths.⁴⁴ Similar population changes have been documented for Stuart Lancashire. An analysis of parish registers from four of Lancashire's six hundreds indicates that population increased until about 1630 or so, steadied, and then declined from about 1660 to 1690 when births again began to exceed burials.⁴⁵ In southwest Lancashire where Prescott is located, deaths exceeded births from approximately 1650 to about 1690; during the last decade of the century births and deaths were fairly equal.⁴⁶

The demography of Prescott township paralleled these national and county trends.⁴⁷ During the last decade of the sixteenth century, baptisms annually averaged 9.5, increased to 16 during the first quarter of the seventeenth century, peaked about 1630 at approximately 29 per year, fell back to 20 annually until 1643, and declined further to 17 between 1644 and 1652. When the register resumes in 1666 after a gap, baptisms were at a higher level than they had been for about thirty years but were again declining. Another increase in births commenced after 1685 and continued through the rest of the century.

The mortality rate roughly followed that for births. When the seventeenth century opened, burials, like baptisms, were increasing; the 35 burials in 1624 were never equaled or exceeded until 1716 which had 36. After averaging 20 annually during the 1620s, burials declined to 13 between 1630 and 1641. Not unexpectedly, burials increased to 19 per year during the war-torn 1640s. After a high of 34 burials in 1675, the number

⁴⁴E. A. Wrigley and R. Schofield, *The Population History of England, 1541–1871: A Reconstruction* (Cambridge: Harvard University Press, 1981), Table 6.8, p. 177; Peter Laslett, *The World We Have Lost—Further Explored*, 3d ed. (Cambridge, England: University Printing House, 1983), 106.

⁴⁵W. G. Howson, "Plague, Poverty and Population in Parts of North-West England, 1580–1720," *Transactions of the Historic Society of Lancashire and Cheshire* 112 (Liverpool, 1960): 37–39. Also see R. Speake, "The Historical Demography of Warton Parish Before 1801," *ibid.*, 122 (Liverpool, 1970): 43–66.

⁴⁶Speake, "Warton Parish," Figure 10, p. 52.

⁴⁷The demographic data for Prescott township came from the parish registers in the parish safe; F. V. Driffild, ed., *The Parish Register of Prescott*, pt. 1, 1573–1631, Lancashire Parish Register Society 76 (Preston: R. Seed & Sons, 1938); and R. and F. Dickinson, eds., . . . pt. 2, 1632–1666, Lancashire Parish Register Society 114 (Leyland: Leyland Printing Co., 1975).

decreased until about 1686 when another increase began and continued to the end of the century.

Baptismal and burial rates can be looked at in still another way. To 1639 Prescot annually baptized 4.5 more persons than it buried, 0.8 between 1640 and 1652, and 2.9 more between 1666 and 1700. For only 21 percent of the years between 1602 and 1639 did burials exceed baptisms but for 46 percent between 1640 and 1652, 40 percent for 1666–1685, and 26.7 percent for 1686–1700. Between 1602 and 1700, minus the gap between 1653 and 1665, there were 281 more births than deaths.

Another source useful for charting broad changes in the size of a population are the call books containing the names of tenants and under-tenants. The former held land directly from the landlord, who for Prescot happened to be King's College in Cambridge, while the latter rented land from the tenants. All had to appear at Prescot's annual leet and acknowledge the court's jurisdiction over them. Except for 1546, annual call books have not survived until 1613 and are not regular until 1635. When nonresident tenants (who numbered up to 21 in 1655 and 1657) are excluded, there were 94 suitors in 1546, an annual average of 164 between 1600 and 1639 (nine books), 135 for 1640 to 1659 (seventeen books), and 140 for 1660 to 1700 (thirty-three books). The average annual number of suitors between 1667 and 1682 was 126 in contrast to 161 for 1683 to 1700.

The broad demographic pattern sketched from Prescot's parish registers is duplicated by these lists of individuals owing suit and service at Prescot's leet. The number of suitors increased at the beginning of the century, precipitously declined from about 1645, and did not begin to increase again until approximately 1683. Resident suitors declined from 181 in 1640, 184 in 1641, and 180 in 1642 to 104 in 1653, 109 in 1654, and 105 in 1659.

A third source for demographic data is the manorial survey. Using surveys, the number of households in Prescot can be estimated at 105 in 1592, 134 in 1614, 140 in 1636, 122 in 1698, and 180 in 1721.⁴⁸ Employing a multiplier of 4.6 persons per household, we arrive at 483 residents in 1592, 616 in 1614, 644 in 1636, 561 in 1698, and 828 in 1721.⁴⁹

These changes in the size of Prescot's population could take on more precise significance if the amount of migration into and out of Prescot were known, especially of individuals not likely to show up in parish registers or

⁴⁸The 1592 survey will be found in Bailey, *Prescot Court Leet*, 34–46; L.R.O., DDCs for 1614; DDKc/PC 4/66 for 1636; and DDKc/PC IV/69 for 1721. The 1698 survey is at King's College (Cambridge University), PRE/37. Another version of the 1721 survey with fewer details is also at King's College, PRE/48.

⁴⁹The choice of 4.6 for a multiplier was based principally upon Peter Laslett, "Size and Structure of the Household in England Over Three Centuries, Part I: Mean Household Size in England since the Sixteenth Century," *Population Studies* 23 (1969): 199–223; rev. in Peter Laslett, ed., "Mean Household Size in England since the Sixteenth Century" in *Household and Family in Past Time*, chap. 4, (Cambridge: Cambridge University Press, 1972), 125–158.

call books. While a detailed study of migration is still in the future, broad trends become recognizable when the number of individuals charged at the leet with being an inmate are known. An inmate was a person unwilling or unable to provide a 10 pound bond guaranteeing that the township would not have to support the individual or his or her family; the resident furnishing shelter could also provide the bond. The demographic patterns already outlined are repeated here. Prescott had more inmates in the early seventeenth century (about nine annually between 1615 and 1639) than during the middle (seven during the 1640s and 1650s) and later years (about six from 1660 to 1700).⁵⁰

In short, Prescott's population expanded at the beginning of the seventeenth century and then declined from about 1640 to 1685 when it again commenced to increase. It is now possible to compare the frequency of certain public health violations with these population trends. Quantified were presentments for disposing of dung in or removing dung from the street or waste illegally or without paying a fee, owning an unlawful midden or privy or swine trough, placing filth in streets, not cleaning ditches, and polluting well water. During the seventy-five years between 1615 and 1700 for which leet records have survived, 386 public health violators were taken before the leet, which also issued 115 orders about these matters that were not associated with a presentment for wrongdoing. And as already noted, between 1678 and 1700 an additional 293 individuals were "presented" and taxed when they disposed of their dung as permitted by the four men.

Not surprisingly, during the war-torn 1640s the residents of Prescott were less concerned with public health violations than during any other period. Only 1.7 public health offenders were annually brought before the leet compared to 4.8 before 1640, 4.1 during the 1650s, and 6.7 between 1660 and 1700. Overall, presentments for public health violations rose faster than both baptisms and burials. While baptisms during the last forty years of the century were ten percent above the annual number for the pre-1640 period and burials twenty-four percent higher, the annual number of presentments rose by thirty-nine percent over the early Stuart period. When presentments and orders are combined, the increase after 1660 over the pre-civil war era is only eleven percent. In other words, all public health violations, as represented in both presentments and orders, increased at the same rate as baptisms. What changed over the century was not the frequency of reported unlawful activity but the way that activity was viewed—as less tolerable. After 1660 orders regarding the public health, not associated with a presentment, decreased by fifty-five percent. During the late Stuart period leet authorities tended to accuse an individual of a public health violation rather than to caution that if the behavior were not

⁵⁰Averages exclude repeat offenders.

altered a presentment would ensue. Looked at another way, during the pre-war period leet officers made 2.3 presentments for every order but 7.1 after 1660.

A less tolerant attitude toward public health violators is also indicated by an analysis of warnings. Of the 386 presentments, sixty-one included a statement that "sundrie," "diverse," or "several" warnings or notices (up to four) to correct behavior had gone unheeded. Before 1640, 32.5 percent of public health violators had been cautioned before being presented at court, during the 1640s and 1650s that percentage fell by almost half to 17.3 percent, and during the final forty years of the century a mere 6 percent were warned. Clearly, late Stuart leet authorities at Prescot were more inclined to punish than to caution public health offenders. And punish they did. In 1687 eighteen residents were assessed 3s. 4d. for raking dung into "heaps" but not removing the piles from their street, and in 1693 thirty inhabitants were similarly fined for not "dressing" the street in front of their house. The latter number was the highest for any year during the entire century.

All quantifiers of historical data run the risk that their periodization masks significant trends. To determine whether the periods chosen for this study—1615–39, 1640–59, and 1660–1700—mask trends, I have compared the eight years with the lowest number of burials (57) and the eight years with the highest (247). Had leet authorities reacted to high mortality rates with concern over public health, then presumably they would have charged more residents with public health violations and issued more orders requiring behavior supportive of good public health. But such was not the case. The authorities made sixty-three accusations and issued twenty-two orders during the eight years that experienced the lowest mortality and only thirty-eight accusations and eleven orders during the eight years with the highest number of deaths. A check of the years immediately following the years with the highest mortality rates, to determine whether the expected reaction had been delayed, also failed to reveal a reaction. It would therefore appear that the number of public health presentments and orders do not reflect a reaction to the population increase during the early Stuart period or to the mortality rate but to less tolerance of public health offenses by the late seventeenth century when population was, at best, steady.

Given the realities of daily life in the seventeenth century, certainly we in the late twentieth century would expect a reaction to unusually high mortality rates in the form of more stringent enforcement of public health regulations. But they are not we. Residents of Prescot had few options but to pile their dung temporarily near their house walls or on the waste. Besides, they had no concept of germs and were less concerned about odors and being odor free than we.

In addition to population changes, the development of local government also could have affected the enactment and enforcement of public

health regulations. It is reasonable to expect that the number of leet officers might increase as population increased, since more people could result in more work and greater public health problems. Typically the officers at Stuart Prescott consisted of constables, clerks of the market, sealers of leather, burleymen, streetlookers, and aletasters, all of whom numbered two; "four men" and four affeerors (jurors who determined the amount of the fines); and one coroner (appointed locally), bailiff, clerk, and doorkeeper. Other leet officers occasionally included in the annual lists of nominated and sworn officers are one or two leygatherers, two supervisors of the wells, and a poundkeeper. If only presentment officers are counted (constables, clerks of the market, sealers of leather, burleymen, streetlookers, aletasters, four men, leygatherers, supervisors of the wells, coroner, and poundkeeper), the annual average number for the periods 1600–39, 1640–59, and 1660–1700 was 16.8, 17.7, and 17.0. The higher average during the middle period is due to one or two leygatherers (1637–60) and a poundkeeper (1651–55).

Jurors to inquire for the lord, who presented as well as judged alleged offenders, annually averaged 15.0, 14.8, and 15.0 for the 125 lists of nominated and sworn jurors for those same periods. (Only sworn jurors were counted.) Jurors between parties decided pleas; their number remained constant at 12 in all 32 lists that have survived for 1602–35, 1653, and 1675.⁵¹

When the seventeen presentment officers, fifteen presentment jurors, twelve jurors between parties, and the steward, bailiff, clerk, and doorkeeper are added, the sum is forty-eight leet officers annually serving in Stuart Prescott. This would seem to be a sizable number for a town of approximately six hundred residents. In addition, occasionally a coroner's jury was impaneled, and two other officers, surveyors of the highways, while never included in the officers' lists, were very infrequently mentioned elsewhere in the leet records. F. A. Bailey believed that these officers were not nominated at Prescott's leet until the middle of the eighteenth century.⁵²

Amid this apparent stability in the number of leet officers there is a hint or two of a reaction to population pressure and to public health concerns. Two supervisors of wells were sworn for the seven years between 1609 and 1615 and two supervisors of wells and streetlookers (a combined office) for nine years between 1620 and 1641, the last year any supervisors of wells appeared in the annual lists. Furthermore, one clerk of the market had been appointed since 1587; from 1627 on two were annually sworn. Also, in the sixteenth century and to 1608 Prescott annually elected two affeerors. Between 1609 and 1615 these officers were not mentioned in the lists. When

⁵¹F. A. Bailey incorrectly stated that this jury "consisted of fourteen or more *Juratores inter Partes*." "The Court Leet of Prescott," *Transactions of the Historic Society of Lancashire and Cheshire* 84 (Liverpool, 1932): 73.

⁵²*Ibid.*, 78 n. 2.

in 1616 they were again included, their number had increased to four, which is where it remained for the rest of the century. And, finally, the year 1626 was the last with sixteen presentment officers. Thereafter there were seventeen or eighteen, with nineteen in 1638. In other words, the number of leet officers did increase during the early part of the seventeenth century when, as we have noted, population increased. Still, except for nominating and swearing two supervisors of wells in the early seventeenth century, there is no suggestion in our analysis of leet officers of a concern with public health that might have resulted from population pressure.

In summary, at Prescott violators against public health bylaws regulating the disposal of dung, the keeping of privies and swine troughs, the cleaning of ditches, and the protection of well water constituted a mere four percent, or 180, of 4,758 offenders of all types between 1615 and 1660. Given the realities of daily life in Stuart Prescott that made virtually everyone a public health offender, only those transgressing commonly accepted limits and those failing to heed warnings or pay appropriate fees were prosecuted. To judge by the low fines and the frequent resorting to warnings to correct behavior and even to employ cautions in place of presentments, sanitary regulations were not strictly enforced. Still, Prescott's leet records contain a fair number of accusations against residents for allowing dung from their piles, urine from privies, and "other fowl matter" to annoy streets. Even in rural Slaidburn in Yorkshire north of Clitheroe so many individuals had dunghills obstructing Common Street that the authorities considered it more efficient to assess a fine of 12*d.* against "all" owners of illegal dunghills than to list names.⁵³ Generally fines were small, although they were usually higher than the fee for legally disposing of dung. In 1630 John Webster failed to heed three notices to remove a midden from a street in Prescott but was still fined only 6*d.*⁵⁴ And in 1622 four residents of Prescott were each fined 2*d.* for laying dung in and annoying the streets. That same court assessed fines against ninety-three other misdemeanants; the lowest was 6*d.* — if two officers (alefounders) fined 3*d.* each for not submitting their presentments to the court are excluded.⁵⁵

But the number of prosecutions for public health violations did increase during the late seventeenth century, and the cause appears to be less tolerance for such behavior and not the size of the population, which actually declined or remained steady until nearly the final decade. The lack of flush toilets, sanitary landfills, sewage treatment plants, and underground sewage and drainage systems, and the fact that urban and agricultural areas frequently were not as clearly separated as they are today, plus the lack of capital to implement significant and costly changes in the disposal of waste products, made compromise necessary. One compromise

⁵³L.R.O., Cl for October 1655.

⁵⁴L.R.O., DDKc/PC 4/161 for 1630.

⁵⁵L.R.O., DDCs for 1622.

was the privilege to store human and animal waste neatly in streets for a limited time and for a fee. In the final analysis, the four percent demonstrates the difference between law and fact and between ideal public health behavior and compromise necessitated by the realities of daily existence.